

demonstrated that Plaintiff's claims against Snorkel may be compelled to arbitration under the Arbitration Agreement and the valid delegation clause.

Final Conclusion

HireArt and Snorkel have demonstrated the existence of an Arbitration Agreement entered into by Plaintiff. It is undisputed by the parties that HireArt is a party to the ICA with the Arbitration Agreement which Plaintiff signed reflecting his engagement for the services subject to his claims in the 2AC. HireArt and Snorkel have demonstrated based on Plaintiff's agency and joint employer allegations in the 2AC and applicable law that Snorkel may compel arbitration of Plaintiff's claims against Snorkel as well as HireArt. Plaintiff has not demonstrated that the delegation clause in the Arbitration Agreement is both procedurally and substantively unconscionable. It is therefore valid, effective and enforceable.

Plaintiff's arguments regarding the unenforceability of the Arbitration Agreement for unconscionability of the agreement as whole, or the unconscionability or unenforceability of the ICA, and the misclassification of his employment and validity of his designated independent contractor status, can be addressed with the arbitrator. Nothing in this ruling shall be construed to limit Plaintiff's ability to raise and address such arguments in arbitration.

11. 9:00 AM CASE NUMBER: C25-01312
CASE NAME: YANHUA XU VS. CHIACHIA HSU
***HEARING ON MOTION IN RE: EXPUNGE LIS PENDENS AND REQUEST FOR ATTORNEY'S FEES AND COSTS**
FILED BY: HSU, CHIACHIA
TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to April 13, 2026, 9:00 am in Department 34. The Court shall issue the order.

12. 9:00 AM CASE NUMBER: C25-01920
CASE NAME: CYNTHIA HARRISON VS. MATTHEW SARABIA
HEARING IN RE: MOTION TO QUASH SERVICE
FILED BY:
TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to April 13, 2026, 9:00 am in Department 34. The Court shall issue the order.